

Sodan Singh v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 21 January 2021 · Writ - C No. 21666 of 2020 · **Writ disposed; representation directed; supply restored; coercive recovery stayed.**

HEADNOTE

Without deciding whether a section 135-linked demand and recovery citation complied with section 126(3) of the Electricity Act, 2003 and clause 8 of the Electricity Supply Code, 2005, the Allahabad High Court disposed of the writ by directing a fresh representation for a reasoned speaking order after hearing, immediate restoration of the disconnected supply, and a stay of coercive measures for six weeks or until that order, whichever was earlier.

FACTUAL SUMMARY

Sodan Singh faced an FIR dated 16 July 2019 under section 135 of the Electricity Act, 2003. Pashchimanchal Vidyut Vitran Nigam Limited issued a demand dated 10 June 2020 and the Tehsildar, Khekra, Baghpat, a recovery citation dated 11 September 2020. He alleged that section 126(3) and clause 8 of the 2005 Supply Code had not been followed. After the writ was filed, the Corporation disconnected supply on 11 January 2021. The licensee said he had not replied within thirty days.

HOLDING-UNITS

INTERPLAY · EA2003::126(3)

s135-recovery-writ-representation-and-restoration

HOLDING

On a writ to quash a demand notice and recovery citation issued after an FIR under section 135 of the Electricity Act, 2003, the High Court did not decide whether section 126(3) of the Act and clause 8 of the Electricity Supply Code, 2005 had been followed. It disposed of the petition by directing the consumer to file a fresh representation, to be decided by a reasoned speaking order after hearing and strictly in accordance with law, ordered that the disconnected electric connection be restored immediately, and barred coercive measures for six weeks or until disposal of the representation, whichever was earlier. ¶ 1

PRINCIPLE TAGS

s135-demand-writ-disposed-by-representation-and-restoration The demand dated 10.6.2020 and recovery citation dated 11.9.2020 were not quashed, and no finding was recorded on section 126(3) or clause 8 of the 2005 Code. Those points were left to a speaking order on a fresh representation after hearing, while supply was restored at once and coercive recovery was stayed for a short window. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DEMAND DATED 10.6.2020 AND RECOVERY CITATION DATED 11.9.2020 WERE ISSUED WITHOUT FOLLOWING SECTION 126(3) OF THE ELECTRICITY ACT, 2003 AND CLAUSE 8 OF THE ELECTRICITY SUPPLY CODE, 2005

Left to a reasoned speaking order on a fresh representation after hearing. ¶ 1

NOT DECIDED — WHETHER FAILURE TO REPLY TO THE DEMAND NOTICE WITHIN 30 DAYS VALIDATED RECOVERY OF THE AMOUNT AS ARREARS OF LAND REVENUE

¶ 1

